ORDINANCE NO. 415

AN ORDINANCE REQUIRING THAT SOLID WASTE GENERATED OR COLLECTED WITHIN THE CITY OF RECTOR, ARKANSAS BE DELIVERED TO THE REGIONAL LANDFILL OWNED BY THE NORTHEAST ARKANSAS REGIONAL SOLID WASTE MANAGEMENT DISTRICT

WHEREAS, the City of Rector, Arkansas (the "City") is a member of the Northeast Arkansas Regional Solid Waste Management District (the "District"); and

WHEREAS, the District has contracted to purchase the Paragould/Greene County Sanitary Landfill ("the Regional Landfill") located in Greene County, and plans to construct improvements to the Regional Landfill in order that the needs of the District may be served; and

WHEREAS, the Regional Landfill will be acquired by the District on or before June 1, 1994; and

WHEREAS, the efficient and economical operation of the Regional Landfill depends on a consistent reliable source of solid waste being delivered to the District for disposal at the Regional Landfill; and

WHEREAS, pursuant to the authority of Act 752 of 1991 (Codified at Ark. Code Ann. Section 8-6-701 et seq.), the District is requiring that solid waste generated or collected within the boundaries of the County be delivered to the District for disposal at the Regional Landfill; and

WHEREAS, no landfill other than the Regional Landfill may legally accept solid waste generated or collected within the City;

NOW, THEREFORE, BE IT ORDAINED by the City Council of the City of Rector, Arkansas:

Section 1. For the purposes of this Ordinance, "solid waste" shall mean all putrescible and nonputrescible wastes which are permitted by law and allowed by landfill operating permits to be accepted for disposal at the Regional Landfill, except that such term shall not include inert nonputrescible wastes approved for disposal in a Class IV landfill as defined in the Arkansas Solid Waste Management Code (1984).

Section 2. All solid waste collected, treated, or otherwise handled by the City shall be delivered to the District for treatment or disposal at the Regional Landfill in the manner prescribed by the District.

Section 3. All solid waste generated or collected within the City shall be delivered to the District for treatment or disposal at the Regional Landfill as prescribed by the District.

Section 4. Nothing in this Ordinance shall be construed to prohibit or restrict the disposal of solid waste generated by private industry in a permitted landfill where the private industry bears the expense of operating and maintaining the landfill solely for the disposal of waste generated by the industry.

Section 5. Any person which generates, collects, transports, or accepts solid waste, and which causes or allows said solid waste to be disposed of at a place or in a manner prohibited by this Ordinance shall be guilty of a misdemeanor and upon conviction shall be subject to a fine of up to $500.00 for the first offense and up to $1,000.00 for each subsequent offense.

Section 6. This Ordinance shall become effective on the date the Regional Landfill is acquired by the District, but in any event, no later than June 1, 1994. The Regional Landfill shall be considered "acquired" when the District is prepared to receive solid waste at the Regional Landfill on a regular basis, and the District notifies the City in writing or by publication that the Regional Landfill is prepared to receive solid waste from sources throughout the District.

Section 7. This Ordinance shall remain in full force and effect and shall be enforced so long as any bonds, notes, or other evidences of indebtedness issued to fund construction and operation of the Regional Landfill remain outstanding; or until the City receives specific authority in writing from the Board of the District allowing the disposal or treatment of solid waste generated or collected within the boundaries of the City in some other manner.

Passed and approved this 14th day of July, 1994.

APPROVED:

Reuben O. Seay
MAYOR

ATTEST:

LaVonde Benson
CITY CLERK

(SEAL)

CERTIFICATE

The undersigned, City Clerk of Rector, Arkansas, hereby certifies that the foregoing pages are a true and correct copy of Ordinance No. _____, adopted at a regular session of the City Council of Rector, Arkansas held at the regular meeting place of the City Council at _____p.m., on the _____ day of _____, 1994, and that said Ordinance is of record in Ordinance Record Book No. _____, Page _____, now in my possession.

GIVEN under my hand and seal this _____ day of _____, 1994.

_____
City Clerk

(SEAL)